

TCW, INC., v. EVERGREEN SHIPPING AGENCY (AMERICA) CORPORATION and EVERGREEN LINE JOINT SERVICE AGREEMENT., Respondents.	Claimant,
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MOTION OF JOSEPH De MAY FOR
LEAVE TO WITHDRAW AS CO-COUNSEL
FOR RESPONDENTS

**Links are to Web Sites of Cornell
Law School or the Am. Bar Ass'n**

Pursuant to Rule [502.23](#)(e) of the Commission's Rules of Practice and Procedure, the undersigned Joseph De May moves, *on consent*, for permission to withdraw as co-counsel for Respondents in this case.

CONSENTS

Pursuant to Rule [502.71](#)(a) the undersigned has conferred with Claimant's Vice President, Mr. Banks, who has appeared for Claimant. He advises that Claimant has no objection to this Motion. *See, Exhibit A.*

Respondents also consent and have been served with a copy of this Motion. *See, Exhibit B.*

BACKGROUND

1. Since the commencement of this case, Respondents have been represented by lead counsel, Paul M. Keane, of the firm of Cichanowicz Callan Keane & De May. I have assisted Mr. Keane. *See, Exhibit B.*

2. I am 72 years old. I am experiencing health / age-related issues. As a result, I am no longer in a position to act as co-counsel for Respondents in this proceeding.

3. Lead counsel, Paul M. Keane, will continue his representation of Respondents. He has been representing Respondents since the beginning of the case, so the proposed withdrawal will not require any delay of the proceedings. There has been an Initial Decision in this case which is now up for review by the Commission. *See, [Informal Docket Sheet](#).*

4. My proposed withdrawal as Respondents' co-counsel can therefore be accomplished without material adverse effect on Respondents' interests. *See, ABA Model Rules [1.16\(b\)\(1\)](#).*

Pursuant to [28 U.S.C. 1746](#)(a), I declare under penalty of perjury that the foregoing is true and correct.

Executed: February 22, 2022.



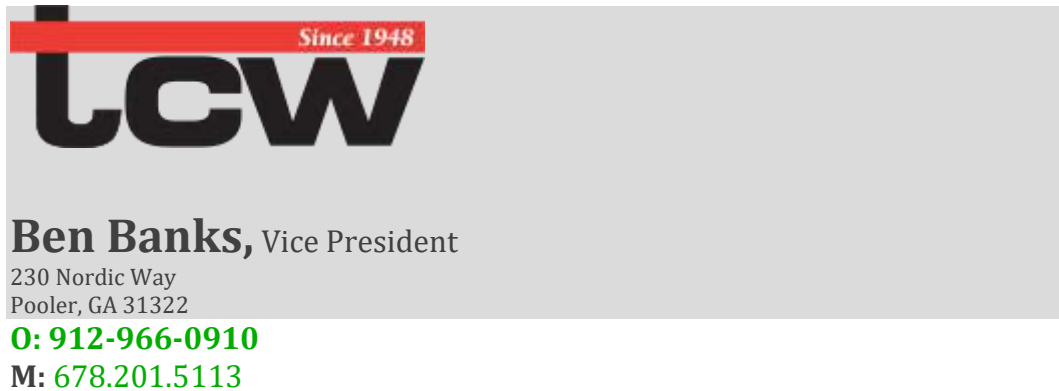
JOSEPH De MAY

EXHIBIT A

From: Ben Banks <bbanks@tcwonline.com>
Sent: Tuesday, February 22, 2022 4:06 PM
To: Joseph De May <jdemay@cckd-ny.com>
Cc: Paul Keane <pkeane@cckd-ny.com>
Subject: Re: TCW v. Evergreen, Docket No.: 1966(I) -- Withdrawal as counsel

Good afternoon Mr. De May,

We have no objection, certainly not for someone wishing to retire. I wish you the best in retirement.



On Tue, Feb 22, 2022 at 3:51 PM Joseph De May <jdemay@cckd-ny.com> wrote:

Dear Mr. Banks,

I worked with Paul Keane on the TCW-Evergreen case. I am 72 and would like to retire for age and health related reasons. Paul, who has been lead counsel, will stay on, so the progress of the case will not be prejudiced.

I will be making a motion to the Commission for leave to withdraw as Respondents' co-counsel in this case. The Commission Rules require me to confer with you to see if you have any objection. Can you advise TCW's position?

Best regards,
Joseph De May, Jr.
CICHANOWICZ CALLAN KEANE & De MAY, LLP
50 Main Street, Suite 1045, White Plains, NY 10606
212-344-7042/43 (T)
212-344-7285 (F)

THIS FIRM WILL CLOSE ON FEBRUARY 28, 2022

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EXHIBIT B

CONSENT TO WITHDRAWAL AS ATTORNEY

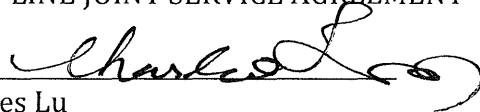
Docket No. 1966(I)

Respondents, Evergreen Shipping Agency (America) Corporation and
Evergreen Line Joint Service Agreement, consent to the foregoing Motion of
Joseph De May to be relieved as Respondents' co-counsel in this case.

Executed: February 23, 2022

EVERGREEN SHIPPING AGENCY (AMERICA) CORPORATION
for itself and as North American General Agent on behalf of
EVERGREEN LINE JOINT SERVICE AGREEMENT

By:



Charles Lu
Senior Vice President